

25LBCV00335 25LBCV00335

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-08-06

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On 6/26/26, the Court held a trial setting conference. Defendant informed the Court that Plaintiff had not appeared for deposition, and the Court specially set a hearing on this motion to dismiss. On 6/30/26, Defendant filed moving papers seeking to dismiss the action in light of Plaintiff's failure to appear for deposition. On 7/24/26, Plaintiff filed opposition, establishing the deposition was completed on 7/14/26. The motion is denied as moot in light of Plaintiff's appearance at deposition.

Defendant alternatively moves to dismiss for failure to prosecute, but the action has not been pending for two years. CCP §583.410, the code section upon which Defendant relies, permits the Court to dismiss an action if the case is not brought to trial within two years after filing. Because the action has not been pending for two years, the alternative motion to dismiss for delay in prosecution is denied.

Defendant is ordered to give notice.